

108	Safavi vs. Ghadiri 25-01522424	Motion for Order Preserving Status Quo Plaintiff Maziar Safavi (“Plaintiff”), proceeding in pro per, moves for an order preserving the status quo and prohibiting Defendant from selling, transferring, conveying, mortgaging, refinancing, encumbering, assigning any interests in, or otherwise disposing of the subject property in any manner that could impair, diminish, frustrate, or render ineffective the Court’s ability to provide meaningful relief and enforce any final judgment in this action. Alternatively, if the Court determines that a complete restriction on transfer of the property is not appropriate, Plaintiff respectfully requests that the Court order that all proceeds, net funds, equity withdrawals, refinancing proceeds, or other funds derived from any sale, transfer, refinancing, or other disposition of the property be preserved and maintained in escrow pending final resolution of this action, and that no such funds be withdrawn, transferred, distributed, or otherwise used without further order of the Court. Plaintiff moves pursuant to Code of Civil Procedure section 526 and 527. Defendant did not oppose the motion. The Court notes that Defendant is also represented herself in this case. “An injunction is a writ or order requiring a person to refrain from a particular act.” (Code Civ. Proc., § 525.) “It may be granted by the court in which the action is brought, or by a judge thereof; and when granted by a judge, it may be enforced as an order of the court.” (Code Civ. Proc., § 525.) Pursuant to Code of Civil Procedure section 527: “A preliminary injunction may be granted at any time before judgment upon a verified complaint, or upon affidavits if the complaint in the one case, or the affidavits in the other, show satisfactorily that
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		sufficient grounds exist therefor. No preliminary injunction shall be granted without notice to the opposing party.” (Code Civ. Proc., § 527(a).) “A trial court may grant a preliminary injunction upon a showing that (1) the party seeking the injunction is likely to prevail on the merits at trial, and (2) the interim harm to that party if an injunction is denied is greater than the [interim] harm the [opposing party] is likely to suffer if the ... injunction is issued.” (Integrated Dynamic Solutions, Inc. v. VitaVet Labs, Inc. (2016) 6 Cal.App.5th 1178, 1183 [internal quotations omitted].) “These two showings operate on a sliding scale: ‘[T]he more likely it is that [the party seeking the injunction] will ultimately prevail, the less severe must be the harm that they allege will occur if the injunction does not issue.’ [Citation.]” (Integrated Dynamic Solutions, Inc. v. VitaVet Labs, Inc. (2016) 6 Cal.App.5th 1178, 1183.) The burden is on the moving party to show all elements necessary to support issuance of a preliminary injunction. (O’Connell v. Superior Court (2006) 141 Cal.App.4th 1452, 1481.) “Although preliminary injunctions are generally designed to preserve the status quo pending a determination on the merits of the action, [citation], they are not so limited.” (Integrated Dynamic Solutions, Inc. v. VitaVet Labs, Inc. (2016) 6 Cal.App.5th 1178, 1183–1184 [internal quotations and citations omitted].) “A court also has the power to issue a preliminary injunction that mandates an affirmative act that changes the status quo [citation] but should do so only in those extreme cases where the right thereto is clearly established.” (Id., at 1184.)
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	“Although the status quo for these purposes can be easily defined as the last actual peaceable, uncontested status which preceded the pending controversy [citation], determining whether a particular order alters the status quo can be more difficult.” (Integrated Dynamic Solutions, Inc. v. VitaVet Labs, Inc. (2016) 6 Cal.App.5th 1178, 1184 [internal quotations and citations omitted].) Importantly, a ruling on an application for preliminary injunction is NOT an adjudication on the merits of the ultimate rights in controversy. (Shoemaker v. County of Los Angeles (1995) 37 Cal.App.4th 618, 625 [the “decision [on the preliminary injunction] does not constitute a final adjudication of the ultimate rights in controversy.”].) It merely represents the trial court’s discretionary decision whether defendant should be restrained from exercising a claimed right pending trial. (Cohen v. Board of Supervisors (9185) 40 Cal.3d 277, 286.) Here, the operative Complaint alleged two causes of action: (1) breach of oral contract and (2) promissory and constructive fraud. On 06/09/2026, the Court ruled on Defendant Nasrin Ghadiri’s Motion for Judgment on the Pleadings. As a result of the Court’s ruling on the Motion for Judgment on the Pleadings and Plaintiff’s failure to file an amended complaint, only one cause of action remains at issue: the first cause of action for breach of oral contract. “[T]he elements of a cause of action for breach of contract are (1) the existence of the contract, (2) plaintiff’s performance or excuse for nonperformance, (3) defendant’s breach, and (4) the resulting damages to the plaintiff.” (Oasis West Realty, LLC v. Goldman (2011) 51 Cal.4th 811, 821.) “[T]he complaint must indicate on its face whether the contract is written, oral, or implied by
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	conduct.” (Otworth v. Southern Pac. Transportation Co. (1985) 166 Cal.App.3d 452, 458–459.) Express and implied “contract[s] are identical in that they require a meeting of minds or an agreement [citation].” (Aton Center, Inc. v. United Healthcare Ins. Co. (2023) 93 Cal.App.5th 1214, 1230.) “Thus, it is evident that both the express contract and contract implied in fact are founded upon an ascertained agreement or, in other words, are consensual in nature, the substantial difference being in the mode of proof by which they are established.” (Ibid.) Moreover, “[i]n order to plead a contract by its legal effect, plaintiff must allege the substance of its relevant terms.” (McKell v. Washington Mutual, Inc. (2006) 142 Cal.App.4th 1457, 1489.) “This is more difficult, for it requires a careful analysis of the instrument, comprehensiveness in statement, and avoidance of legal conclusions.” (Ibid.) In support of his motion, Plaintiff submitted a declaration along with the following exhibits: (1) the written agreement dated May 9, 2021, (2) text messages providing context as to why the May 9, 2021, agreement was created, (3) text messages showing Defendant’s intention to sell the property, and (4) communications related to the appraisal process for the property, photographs showing the upgrades Plaintiff completed on the property (before and after photographs). The moving papers, however, do not include the written agreement dated May 9, 2021, as indicated in the declaration. In the moving papers, Plaintiff also fails to present sufficient evidence establishing an agreement between Plaintiff and Defendant for the upgrades that Plaintiff appears to have performed on the property at issue. In the record presented to the Court in support of this motion, there is no evidence of an agreement between the
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		two parties. For this reason, the Court finds that Plaintiff has not sufficiently established a likelihood that Plaintiff will prevail on his breach of contract cause of action at trial. Importantly, the Court notes that this is not a determination of the merits of Plaintiff's breach of contract cause of action against Defendant and the Court makes no conclusions as to whether there was in fact an agreement between Plaintiff and Defendant. The Court only determines that Plaintiff has provide sufficient evidence of this agreement in this motion and therefore has not met his burden in moving to maintain the status quo. Given the above, the Motion is DENIED. Court clerk to give notice.
109	JB Bostick, LLC vs. Braathen 25-01495911	Motion for Sanctions Plaintiff and Cross-Defendant JB-BOSTICK, LLC ("Plaintiff") moves this Court for an order imposing sanctions against Defendant and Cross-Complainant ARILD BRAATHEN ("Defendant") arising from Defendant's post-litigation destruction of critical physical evidence. [Please see Notice of Motion. (ROA 51).] Initially, the Discovery Act does not expressly prohibit the intentional destruction of relevant evidence ("spoliation") before a lawsuit has been filed or before a discovery request. [See Dodge, Warren & Peters Ins. Services, Inc. v. Riley (2003) 105 CA4th 1414, 1419.] Notably, Courts have disagreed whether spoliation is sanctionable under the Discovery Act: "Destroying evidence in response to a discovery request after litigation has commenced would surely